

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/29/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0001349

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK:

PLAINTIFF: LEE HENRY GREENBERG

vs.

DEFENDANT: RONNIE BAKER, ET AL

NATURE OF PROCEEDINGS: MOTION – RELIEVE COUNSEL

RULING

The Court has reviewed the declaration filed by Counsel Tim Walsh regarding notice to Ronnie Baker and Angela Baker and Full Construction Solutions. The Court agrees that these parties were provided notice of Mr. Walsh's Notice to be Relieved of Counsel. No opposition was filed, and therefore, the motion is granted. Mr. Walsh shall prepare a proposed order.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for July, 2026 is as follows:

<https://marin-courts-ca-qov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjiEOSHNgEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/29//26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0002924

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK:

PLAINTIFF: LANDMARK HOME
SOLUTIONS, LLC

vs.

DEFENDANT: FREDERICK SHEIN

NATURE OF PROCEEDINGS: MOTION – LEAVE TO AMEND

RULING

Defendant/Cross-Complainant Frederick Shein (“Shein”) filed a motion for leave to file a First Amended Cross-Complaint. The motion was served on Plaintiff/Cross-Defendant, and no opposition was filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (Cal. Rules of Court, rule 8.54, subd. (c).) Failure to oppose a motion may also lead to the presumption that [plaintiff] has no meritorious arguments. (See *Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal. App. 3d 481, 489, disapproved of by *Garcia v. McCutchen* (1997) 16 Cal.4th 469, on other grounds.)

In light of the non-opposition, the motion is granted. Shein shall file the First Amended Cross-Complaint within ten days of service of this order.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/29/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0003639

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK:

PLAINTIFFS: ROBERT VOG,T ET AL vs. DEFENDANT: AMERICAN HONDA MOTOR CO., INC.	
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NATURE OF PROCEEDINGS: MOTION – ATTORNEY’S FEES

RULING

Plaintiffs’ motion for attorney’s fees and costs is granted in part and denied in part. Plaintiffs are awarded \$42,675 in attorney’s fees and \$5,379.71 in costs. Defendant American Honda Motor Company (“Honda”) is ordered to pay the total amount of \$48,054.71 to Plaintiff within 60 days of the date of this Order.

Standard

“If a buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code § 1794(d).) The buyer has the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation and were reasonable in amount. (*Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App.4th 785, 817.) A reasonable hourly rate is determined by the prevailing rate charged by attorneys of similar skill and expertise in the relevant community. (See *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.)

“A fee request that appears unreasonably inflated is a special circumstance permitting the trial court to reduce the award or deny one altogether. ‘If . . . the Court were required to award a reasonable fee when an outrageously unreasonable one has been asked for, claimants would be encouraged to make unreasonable demands, knowing that the only unfavorable consequence of such misconduct would be a reduction of their fee to what they should have asked for in the first place. To discourage such greed, a severer reaction is needful’” (*Serrano v. Unruh* (1982) 32 Cal.3d 621, 635 [citation omitted].)